

The Art of Negotiation

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Chapter 1 — Prepare the BATNA

Know your walk-away before you sit down. Power is the option to leave, calmly. The Best Alternative To a Negotiated Agreement — your BATNA — is the true source of leverage, not volume, status, or bluffing.

Improve your BATNA before negotiating. The candidate with three offers negotiates differently from the candidate with one. Spend pre-negotiation energy creating alternatives; it pays better than any table technique.

Estimate their BATNA too. What happens to them if talks fail? The party who needs the deal less holds the stronger hand. Understanding their alternatives reveals how hard you can push and where they truly need you.

Set three numbers privately: target (what great looks like), acceptable (what you can live with), walk-away (below which leaving beats dealing). Decide these alone beforehand — negotiation pressure distorts arithmetic in real time.

Write your walk-away on a card and bring it. When pressure mounts and sunk-cost feelings rise, the card speaks for the version of you who was thinking clearly. Honor that person; they saw further.

Chapter 2 — Listen to Reveal

The best negotiators talk least. Every question you ask surfaces information: constraints, priorities, deadlines, pressures. The first side to reveal eagerness usually funds the other's bonus.

Ask open questions and then be quiet. 'What matters most to you in this deal?' invites more than any statement. Silence after their answer extracts a second, more honest answer — people fill quiet with truth.

Listen for the difference between positions and interests. A position is what they demand ('we need delivery by March'). An interest is why ('our warehouse renovation finishes then'). Multiple positions can satisfy one interest — flexibility lives there.

Mirror and label. Repeating their last key words ('March?') prompts elaboration without concession. Labeling emotions ('it sounds like timing is critical for you') builds rapport while

confirming intelligence.

Take visible notes even when unnecessary. Note-taking signals seriousness, slows the conversation usefully, and makes counterparties choose words more carefully. Cheap tool, disproportionate effect.

Chapter 3 — Expand the Pie

Most deals are not zero-sum. Find terms they value that cost you little and trade them. The classic mistake is fighting over price alone when timing, scope, payment terms, guarantees, and exclusivity all hold tradeable value.

Uncover multiple issues before proposing anything. Single-issue negotiations are pure tug-of-war. Three or more issues enable trades where both sides win the things they care about most.

Use 'if... then' packages. 'If you commit to two years, then I can improve the rate.' Conditional offers protect you (concessions only against reciprocation) while demonstrating movement and creativity simultaneously.

Different costs make magic. Something trivial to deliver but valuable to receive is the raw material of every great deal. Inventory your cheap-for-them-to-give items and theirs cheap-for-you — then trade across the asymmetry.

Beware the fixed-pie assumption even when it feels obvious. Research consistently shows negotiators who assume limited pie leave value on tables. Ask 'what would make this workable for your side?' before concluding impasse.

Get the complete edition

The full edition of The Art of Negotiation includes all 10 chapters with end-of-chapter practice prompts. Available at the ANSY store.

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